

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #16	CCRB Case #: 201602663	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 03/20/2016 5:40 PM	Location of Incident: § 87(2)(b), later at the 62nd Precinct stationhouse		18 Mo. SOL 9/20/2017		Precinct: 62
Date/Time CV Reported Wed, 03/30/2016 10:34 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 03/30/2016 10:34 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An officer			062 PCT
2. SGT Alexander Montero	1614	937126	062 PCT
3. POM Jason Bryant	23744	950118	062 PCT
4. POM Elias Khan	16385	952028	062 PCT
5. SGT Francis DePalma	2400	946679	062 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Stackpole	02040	949692	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: At § 87(2)(b) in Brooklyn, an officer threatened to arrest § 87(2)(b)	A . Officer(s) Unidentified
B . SGT Alexander Montero	Abuse: At § 87(2)(b), in Brooklyn, Sergeant Alexander Montero did not obtain medical treatment for § 87(2)(b)	B . Unsubstantiated
C . SGT Francis DePalma	Abuse: At the 62nd Precinct stationhouse, Sergeant Francis Depalma did not obtain medical treatment for § 87(2)(b)	C . Unsubstantiated
D . POM Elias Khan	Abuse: At the 62nd Precinct stationhouse, Police Officer Elias Khan did not obtain medical treatment for § 87(2)(b)	D . Unsubstantiated
E . POM Jason Bryant	Abuse: At the 62nd Precinct stationhouse, Police Officer Jason Bryant did not obtain medical treatment for § 87(2)(b)	E . Unsubstantiated

Case Summary

On March 30, 2016, § 87(2)(b) and § 87(2)(b) filed this complaint with the CCRB in-person.

At approximately 5:40 p.m. on March 20, 2016, § 87(2)(b) got into a dispute with his neighbor, § 87(2)(b) in front of their apartment building, located at § 87(2)(b), in Brooklyn. § 87(2)(b) alleged that § 87(2)(b) slashed him with a knife, causing a laceration on his stomach. § 87(2)(b) responded by breaking a glass bottle over § 87(2)(b)'s head, causing § 87(2)(b) to bleed from his forehead. § 87(2)(b) then ran into the lobby. § 87(2)(b) called 911 to report the dispute. While § 87(2)(b) and § 87(2)(b) waited for the police to arrive, § 87(2)(b) came back outside with several relatives. A few minutes later, several officers, including Sgt. Alexander Montero and PO Michael Stackpole of the 62nd Precinct, responded to the location. Two FDNY EMTs, § 87(2)(b) and § 87(2)(b), also responded. After speaking to the two individuals, § 87(2)(b) was placed under arrest for § 87(2)(b). § 87(2)(b) was not arrested. After § 87(2)(b) was handcuffed, § 87(2)(b) tried to approach him. An unidentified officer told her that she would be arrested if she did not step away (**Allegation A**).

§ 87(2)(b) was treated by the EMTs while § 87(2)(b) was handcuffed. § 87(2)(b) asked Sgt. Montero if the EMTs could examine the laceration to his stomach as well. Sgt. Montero, however, refused this request (**Allegation B**). § 87(2)(b) was then transported to the 62nd Precinct stationhouse, where he was lodged in a cell with another prisoner, § 87(2)(b). § 87(2)(b) asked several officers stationed outside of the holding cell, identified by the investigation as Sgt. Francis DePalma, PO Elias Khan and PO Jason Bryant, in the 62nd Precinct, for medical attention. These officers ignored § 87(2)(b)'s request (**Allegations C, D and E**). Several hours later, § 87(2)(b) was transported to Brooklyn Central Booking. During his medical examination there, a doctor examined § 87(2)(b)'s laceration and asked him if he wanted to have it treated at the hospital. § 87(2)(b) declined medical attention at that time, stating that he did not want to delay his court appearance. § 87(2)(b) was released after his arraignment.

No video footage was found documenting the incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation due to § 87(2)(b)'s arrest.
- Neither of the § 87(2)(b) filed a notice of claim regarding this incident as of August 31, 2016 (See Board Review #01: Notice of Claim).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) or § 87(2)(b).
- Sgt. Montero has been a member of the service for eleven years and there are no substantiated CCRB allegations against him. He has been the subject of four allegations in three cases. This is the first refusal to obtain medical treatment allegation against him.
- Sgt. DePalma has been a member of the service for eight years and there are no substantiated CCRB allegations against her. She has been the subject of twenty three allegations in thirteen cases. This is the first refusal to obtain medical treatment allegation against her.
- PO Khan has been a member of the service for four years and there are no substantiated CCRB allegations against him. He has been the subject of seven allegations in four cases. One previous refusal to obtain medical treatment allegation against him in case #201510195 was closed as unsubstantiated.
- PO Bryant has been a member of the service for five years and there are no substantiated CCRB allegations against him. He has been the subject of one physical force allegation in one previous case.

Attempts to Contact Civilians

- At the 62nd Precinct stationhouse, § 87(2)(b) was lodged in a holding cell with another prisoner, whom he identified only as § 87(2)(b). A review of arrests at the command identified this prisoner as § 87(2)(b) (See Board Review #04: Arrest Report). § 87(2)(b)'s contact information was listed on his arrest report. During an initial call on April 7, 2016, § 87(2)(b) provided a brief statement. When he was questioned about the allegations, § 87(2)(b) disconnected the call. Between April 7, 2016 and May 11, 2016, six additional telephone calls were made to § 87(2)(b) in an effort to complete his statement. Messages were left with his mother on each call. § 87(2)(b)'s mother did not provide her name. Please-call letters were sent to § 87(2)(b) on April 11, 2016 and April 28, 2016. Neither letter was returned to the CCRB by the US Postal Service. To date, § 87(2)(b) has not responded to these contact attempts.
- EMT § 87(2)(b) was identified as one of the two EMTs who responded to the location and treated § 87(2)(b). A subpoena was sent to the FDNY on July 6, 2016 in order to obtain EMT § 87(2)(b)'s testimony. On July 13, 2016, the FDNY indicated that EMT § 87(2)(b) § 87(2)(b) is therefore unavailable for interview.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) alleged that after § 87(2)(b) was placed in handcuffs, she tried to approach him. An officer told her that she would be arrested if she did not step away from § 87(2)(b). She identified this officer as being one of eight officers present and indicated that he was male. § 87(2)(b) was only able to describe three of the responding officers, but she did not know if the officer who threatened her was one of these three, or one of the others that she could not describe. She did not attribute any other actions to this officer. None of the other civilians, including § 87(2)(b), recalled this interaction. Both Sgt. Montero and PO Stackpole stated that they instructed several bystanders to step away from § 87(2)(b) and § 87(2)(b) and to move onto a nearby sidewalk. Both denied that they or any other officer threatened to arrest § 87(2)(b) § 87(2)(g).
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b).
- § 87(2)(b) described the officer who refused to obtain medical attention for him at § 87(2)(b) § 87(2)(b) as a white male with blue stripes on his upper arm. This same officer told him that he was in charge and directed another officer to arrest § 87(2)(b) for assaulting § 87(2)(b) § 87(2)(b). § 87(2)(b) was unable to recall what this officer looked like. Sgt. Montero, a Hispanic male, identified himself as the only supervisor who responded to the incident. He also identified himself as the officer who directed officers to place § 87(2)(b) under arrest. § 87(2)(g)
§ 87(2)(b).
- § 87(2)(b) stated that he asked three officers at the stationhouse for medical attention. These three officers were assigned to work in a room directly adjacent to the holding cell area, and remained there for several hours. He described these officers as a Hispanic female and two white males. According to the roll call, Sgt. DePalma was assigned to work as the desk officer, PO Khan worked as the Telephone Switchboard operator, and PO Bryant worked as the cell attendant. No other officers were listed as having steady stationhouse assignments (See Board Review #05: Roll Call). Sgt. DePalma is a Hispanic female, PO Khan is a Hispanic male, and PO Bryant is a white male. Sgt. DePalma and PO Khan both worked at their posts for the entirety of their tours. PO Bryant was reassigned outside of the stationhouse at 3:30 p.m., and returned at 9:00 p.m. He did not recall what he did afterwards, but confirmed that he was at the stationhouse until the end of his tour at 11:35 p.m. The officers worked near the front desk, which is located in a room adjoining the holding cell area. This placed him in the stationhouse for much of § 87(2)(b)'s time in the holding cells, in positions matching § 87(2)(b)'s statement. § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b).

Allegation A –Abuse of Authority: At § 87(2)(g) in Brooklyn, an officer threatened to arrest § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were interviewed at the CCRB on March 30, 2016 (See Board Review #06-07: The § 87(2)(b) Statement). § 87(2)(b) alleged that after § 87(2)(b) was placed in handcuffs, she tried to approach him on foot. An officer told her that if she would be placed under arrest if she did not keep her distance from her husband. § 87(2)(b) did not recall what this officer looked like, and did not recall what, if any, other actions this officer might have taken during the incident. In his CCRB statement, however, § 87(2)(b) made no mention of any interactions between § 87(2)(b) and the police, including any officers who threatened to arrest his wife.

§ 87(2)(b) provided a telephone statement on April 18, 2016. His son § 87(2)(b) provided a telephone statement on April 11, 2016. His daughter-in-law, § 87(2)(b) § 87(2)(b) provided a telephone statement on April 14, 2016. His wife, § 87(2)(b) provided a telephone statement on April 28, 2016 (See Board Review #08-11: § 87(2)(b) Family's Statements). § 87(2)(b) denied hearing any officer threaten to arrest § 87(2)(b). § 87(2)(b) did witness an unidentified officer speak briefly to § 87(2)(b) but she was unable to understand the conversation as she does not understand English. She did not describe this officer. § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) made no mention of any officer issuing orders to § 87(2)(b) or threatening to arrest her.

The superintendent of § 87(2)(b) § 87(2)(b) provided a telephone statement on May 5, 2016 (See Board Review #12: § 87(2)(b) s Statement). EMT § 87(2)(b) was interviewed at the CCRB on August 31, 2016 (See Board Review #13: EMT § 87(2)(b) s Statement). Neither witness recalled any officers threatening to arrest any individuals during the incident.

Sgt. Montero was interviewed at the CCRB on June 16, 2016. PO Stackpole was interviewed at the CCRB on June 3, 2016 (See Board Review #14-15: MOS Statements). Both officers stated that they told a group of several bystanders who had gathered around the location to step away from § 87(2)(b). These bystanders complied with these instructions. Both denied that they or any other officer threatened to arrest any of the bystanders, including § 87(2)(b).

§ 87(2)(g) § 87(2)(b) § 87(2)(b). Therefore, it is recommended that **Allegation A** be closed as **officer unidentified**.

Allegation B –Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Alexander Montero did not obtain medical treatment for § 87(2)(b)

It is undisputed that § 87(2)(b) was arrested for assaulting § 87(2)(b) outside of § 87(2)(b) § 87(2)(b). § 87(2)(b) broke a glass bottle over § 87(2)(b) s head, causing him to bleed from his forehead. It is also undisputed that EMTs § 87(2)(b) and § 87(2)(b)

responded to the location and treated § 87(2)(b) § 87(2)(g) .

§ 87(2)(b) alleged that during the fight, § 87(2)(b) cut him on the stomach with a knife, causing a laceration. Several officers, including Sgt. Montero, responded to the location along with the EMTs. Sgt. Montero placed § 87(2)(b) under arrest for § 87(2)(b) . After he was handcuffed, § 87(2)(b) asked Sgt. Montero to have the EMTs who were treating § 87(2)(b) examine the laceration on his stomach as well. Sgt. Montero replied, “I make the decision here who needs medical attention or not.” § 87(2)(b) was then removed to the 62nd Precinct stationhouse without receiving any medical treatment.

§ 87(2)(b) also stated that while the EMTs were treating § 87(2)(b) § 87(2)(b) asked an officer if the EMTs could examine his laceration. The officer refused to let § 87(2)(b) speak to the EMTs, and told § 87(2)(b) that he did not require medical attention. § 87(2)(b) also provided a photograph of § 87(2)(b) s laceration, which she took the day after the incident (See Board Review #16: § 87(2)(b) s Photo).

While § 87(2)(b) and § 87(2)(b) did not observe any injuries to § 87(2)(b) both § 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) had a small cut on his torso. All four individuals stated that § 87(2)(b) was examined by EMS, but denied that § 87(2)(b) was examined. All of them denied hearing § 87(2)(b) request medical attention. § 87(2)(b) did not observe any injuries to § 87(2)(b) . He confirmed that § 87(2)(b) was treated by EMS, but denied seeing the EMTs treat § 87(2)(b) . He was not aware of § 87(2)(b) requesting medical attention from anybody.

EMT § 87(2)(b) recalled treating § 87(2)(b) for a laceration on his forehead. She also recalled that there was another man at the location who was arguing with § 87(2)(b) but she did not know who he was. She was not aware of anybody being arrested during the incident. She denied that she or EMT § 87(2)(b) treated any other civilians during the incident besides § 87(2)(b) . She did not recall herself or EMT § 87(2)(b) interacting with any other civilians, including the male whom § 87(2)(b) was arguing with. She did not recall anybody else either requesting or refusing medical attention. She did not recall observing any injuries to anybody besides § 87(2)(b) at the location.

Sgt. Montero denied observing any injuries to § 87(2)(b) during the incident, including any lacerations to his stomach. He denied that § 87(2)(b) requested medical attention from any officer, and denied that he or any officer told § 87(2)(b) “I make the decision here who needs medical attention or not.” Sgt. Montero denied that § 87(2)(b) refused medical attention. PO Stackpole, however, stated that § 87(2)(b) did have a laceration on his stomach. After the EMTs examined § 87(2)(b) they attempted to examine § 87(2)(b) s laceration as well. § 87(2)(b) however, refused to let the EMTs examine his injury. He did not explain why he was refusing medical attention. PO Stackpole denied that § 87(2)(b) requested medical attention, or that any officer refused to obtain medical attention for him. He did not state whether § 87(2)(b) s refusal was documented in any way.

PO Shunying Chan prepared a Medical Treatment of Prisoner Report for § 87(2)(b) at Brooklyn Central Booking. § 87(2)(b) testified that PO Chan had not been involved in his arrest. The report indicates that § 87(2)(b) had a minor laceration to his stomach, and that he had the injury when he was initially taken into police custody. The report also indicated that § 87(2)(b) did not require or request medical attention. § 87(2)(b) placed his signature on this form (See Board Review #17: Medical Treatment of Prisoner Report). No other medical treatment of prisoner reports were prepared.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C –Abuse of Authority: At the 62nd Precinct stationhouse, Sergeant Francis DePalma did not obtain medical treatment for § 87(2)(b)

Allegation D –Abuse of Authority: At the 62nd Precinct stationhouse, Police Officer Elias Khan did not obtain medical treatment for § 87(2)(b)

Allegation E –Abuse of Authority: At the 62nd Precinct stationhouse, Police Officer Jason Bryant did not obtain medical treatment for § 87(2)(b)

It is undisputed that after § 87(2)(b)'s arrest, he was transported to the 62nd Precinct stationhouse. There, he was lodged in a holding cell along with another prisoner, § 87(2)(b). § 87(2)(b) was not treated while at the 62nd Precinct. He was later transported to Brooklyn Central Booking. § 87(2)(b) was offered medical attention while at Central Booking, but he refused it.

§ 87(2)(b) alleged that while he was in the cell, he spoke to Sgt. DePalma, PO Khan and PO Bryant separately on multiple occasions. He asked each of these officers individually for medical attention for the laceration on his stomach. All three officers refused this request. Sgt. DePalma told § 87(2)(b) “When you’re locked up, you have no rights.” PO Khan and PO Bryant both told § 87(2)(b) to calm down, and that they could not help him. § 87(2)(b) was not treated while he was at the stationhouse.

§ 87(2)(b) was taken to Brooklyn Central Booking approximately six hours after arriving at the stationhouse. At Central Booking, a doctor examined § 87(2)(b)’s stomach and told him that he needed to go to the hospital to have the laceration treated. She also noted, though, that the trip to the hospital would delay § 87(2)(b)’s appearance in court. Not wanting to stay in custody longer than he had to, § 87(2)(b) decided to refuse medical attention.

§ 87(2)(b) provided a partial telephone statement on April 7, 2016 (See Board Review #18: § 87(2)(b)’s Statement). § 87(2)(b) confirmed that he was lodged with § 87(2)(b) at the stationhouse. § 87(2)(b) complained that he had been stabbed before his arrest. Initially, § 87(2)(b) stated that he did not recall if § 87(2)(b) had any injuries. When specifically asked if he observed any lacerations to § 87(2)(b)’s stomach, § 87(2)(b) recalled that he did. § 87(2)(b) asked several officers to call an ambulance for his injury. § 87(2)(b) disconnected the call when he was asked to describe these officers. § 87(2)(b) did not state how the officers responded to § 87(2)(b)’s requests. § 87(2)(b) did not respond to further contact attempts made to complete his statement.

PO Bryant was interviewed at the CCRB on July 7, 2016. PO Khan was interviewed on August 10, 2016. Sgt. DePalma was interviewed on August 26, 2016 (See Board Review #19-21: MOS Statements). None of the officers recalled any interactions with § 87(2)(b) or any other prisoners at the time of the incident. None of them recognized photographs of § 87(2)(b). None of the officers recalled any prisoners displaying any injuries, including any lacerations to their stomachs, at the time of the incident. None of the officers recalled any prisoners requesting any medical attention. They did not recall refusing any such requests. None of the officers recalled telling any prisoners, “When you’re locked up, you have no rights.”

The 62nd Precinct command log does not indicate what § 87(2)(b)’s physical condition was when he arrived at the stationhouse (See Board Review #22: Command log).

§ 87(2)(g)
[REDACTED]

_____. Therefore, it is recommended that **Allegations C, D and E** be closed as **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date